

Judgment Sheet
PESHAWAR HIGH COURT, BANNU BENCH
(Judicial Department)

CM No. 193-B/2026
In WP No.437-B/2024

Dilawar Khan & 02 others

Vs

**Government of Khyber Pakhtunkhwa
and 02 others**

JUDGMENT

For applicant: **Mr. Ali Gohar Durrani Advocate**
(via video link)

Date of hearing: **10.06.2026**

MUHAMMAD TARIQ AFRIDI, J.- The applicant, Sadeeq Anjum, Director Anti-Corruption, Khyber Pakhtunkhwa, has filed the instant Civil Miscellaneous Application under Order XLI, Rule 5(2) of the Code of Civil Procedure, 1908, read with all other enabling provisions of law, seeking suspension of the judgment/order dated 05.05.2026 (signed and prepared on 02.06.2026), so as to enable the applicant to avail further legal remedy in accordance with law.

2. Briefly stated, the facts leading to the filing of the present application are that on 19.08.2024, Mr. Abdur Rahim, Circle Officer, Anti-Corruption, Bannu, submitted a source report to the Director Anti-Corruption Establishment, Khyber Pakhtunkhwa, alleging that Dilawar Khan and Sadiq Dilawar Khan were illegally selling government land by developing a housing scheme under the name "Central Provincial Elite Community Residentia (CPEC Colony)," thereby causing huge loss to the public exchequer. Permission for conducting an open enquiry was sought and accordingly granted vide Letter No.5545/ACE dated 21.08.2024.

3. Upon conclusion of the enquiry, the Circle Officer reported that 39-Kanals of land comprising Khasra Nos.5824 and 5827 situated in Mouza Bharat, Bannu, forming part of a water channel (Khwar) allegedly owned by the Provincial Government, had been unlawfully occupied and incorporated into the said housing scheme. He recommended registration of a criminal case against Taj Mali Khan, the then Sub-Registrar, Bannu, Dilawar Khan son of Ghulam Muhammad, and his sons Humayun Dilawar and Sadiq Dilawar.

4. Consequently, FIR No.2, dated 09.09.2024, under Sections 409, 419, 420, 468, 471 PPC, read with Section 5(2) of the Prevention of Corruption Act, 1947, was registered against them at Police Station Anti-Corruption, Bannu. Subsequently, warrants of arrest were also issued by the Judicial Magistrate-II, Bannu on 10.09.2024.

5. Feeling aggrieved, the accused Dilawar Khan and his sons, Humayun Dilawar and Sadiq Dilawar, instituted Writ Petition No.437-B/2024 before this Court, seeking quashment of the FIR on the ground that its registration was actuated by mala fides and ulterior motives. After hearing the parties and examining the record, this Court found that the inquiry and FIR had been initiated in violation of the mandatory provisions of the Khyber Pakhtunkhwa Anti-Corruption Establishment Rules, 1999, and that the proceedings were actuated by mala fides and extraneous considerations. It was further found that the conduct of the concerned Director and Circle Officer, Anti-Corruption Establishment, prima facie disclosed abuse of authority and lack of bona fides, resulting in the registration of a criminal case against a serving BPS-20 Judicial Officer under the Islamabad High Court through an inquiry devoid of lawful basis and unsustainable in law.

6. Consequently, the writ petition was allowed, the FIR together with all proceedings conducted pursuant thereto was

quashed, and the Chief Secretary, Government of Khyber Pakhtunkhwa, was directed to place the judgment before the competent authority forthwith for initiation of proceedings, in accordance with law, against the concerned officers. The competent authority was directed to fix responsibility and take appropriate disciplinary action after due process, and a compliance report was ordered to be submitted to the Registrar of this Court within sixty (60) days for placement before the Court.

7. Now, the applicant, Sadeeq Anjum, Director Anti-Corruption, Khyber Pakhtunkhwa, has filed the instant Civil Miscellaneous Application No.193/2026 under Order XLI, Rule 5(2) CPC, read with other enabling provisions of law, seeking suspension of the judgment dated 05.05.2026 to enable him to avail further legal remedy in accordance with law.

8. We have heard the submissions made by learned counsel for the applicant and have minutely examined the record.

9. Before commencement of arguments, learned counsel for the applicant was asked to elaborate upon and explain the other undisclosed enabling provisions referred to in the application, on the basis of which the desired relief has been sought. However, he remained unable to identify or explain any such law or the aforementioned provisions in support thereof.

10. Learned counsel for the applicant contended that, with utmost respect, the direction issued to proceed against the applicant through the Worthy Chief Secretary on the allegation of purported "abuse of authority and lack of bona fides resulting in registration of a criminal case" runs contrary to the express mandate of Article 199(1A) of the Constitution of the Islamic Republic of Pakistan, 1973. It was further argued that such a direction also militates against the scheme and provisions of Section 5 of the West Pakistan Anti-Corruption Establishment Ordinance, 1961.

11. Learned counsel further submitted that suspension of the judgment *ibid* is imperative to preserve the applicant's right to avail appropriate legal remedy before the competent forum. In support of his contention, learned counsel referred to the consistent practice adopted by this Court in analogous circumstances, including CM No. 1292-P/2017 in WP No. 3206-P/2015, wherein, vide order dated 15.06.2017, the operation of the impugned proceedings arising out of a quo warranto petition concerning the Chief Executive Officer, Pakhtunkhwa Energy Development Organisation, was suspended to enable the aggrieved party to approach the Hon'ble Supreme Court of Pakistan.

12. Similarly, reliance was placed upon recent matters relating to the Gas Infrastructure Development Cess, wherein this Court followed the same judicial approach by extending interim protection to safeguard the rights of affected parties pending final adjudication by the Hon'ble Federal Constitutional Court of Pakistan, including CMA No. 2549-P/2025 decided on 15.10.2025 in WP No. 2067-P/2024 and CMA No. 981-P/2016 decided on 15.04.2026 in WP No. 5591-P/2025.

13. Learned counsel, therefore, submitted that the applicant's case stands on an identical footing and, on the principles of parity, consistency, and judicial discipline, the applicant is entitled to the same protection by way of suspension of the judgment to enable him to pursue the remedy available under the law.

14. When confronted with the question as to whether the provisions of Order XLI, Rule 5(2) of the Code of Civil Procedure, 1908, could be invoked and made applicable to proceedings conducted and judgments/orders rendered by this Court while exercising constitutional jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, particularly when such judgments/orders do not fall within the definition of a "decree" as envisaged under Section 2(2) of the

Code of Civil Procedure, 1908, learned counsel for the applicant contended that since the impugned judgment has finally adjudicated upon and determined the controversy between the parties, therefore, for all intents and purposes, it ought to be treated at par with a decree passed by a civil court.

15. The contention so advanced is misconceived and cannot be accepted. The final determination of a matter or adjudication of a controversy by this Court while exercising its extraordinary constitutional jurisdiction does not, by itself, alter the legal character of such judgment nor does it transform the same into a "decree" within the contemplation of Section 2(2) of the Code of Civil Procedure, 1908. A judgment delivered under Article 199 of the Constitution emanates from constitutional jurisdiction and derives its authority, nature, and enforceability from the Constitution itself, and therefore cannot be equated with a decree passed by a court exercising ordinary civil jurisdiction.

16. Likewise, reliance placed upon various orders of this Court, whereby applications under Order XLI, Rule 5(2) read with Section 151 of the Code of Civil Procedure, 1908, were entertained and judgments/orders passed in tax references were suspended merely to enable the aggrieved parties to approach the Hon'ble Supreme Court of Pakistan through Civil Petitions for Leave to Appeal, is misconceived and misplaced. Such orders were passed having regard to their own peculiar facts, statutory framework, and circumstances, and cannot be construed as laying down any binding principle of universal application that Order XLI, Rule 5(2) CPC can be invoked, as a matter of right, for suspension of judgments rendered by this Court in exercise of constitutional jurisdiction under Article 199 of the Constitution.

17. Moreover, a bare perusal of paragraph No. 38 of the judgment of this Court dated 05.05.2026 reveals that the directions issued therein are clear, explicit, and confined strictly to placing the matter before the competent authority through the

Worthy Chief Secretary for consideration and initiation of appropriate proceedings against the concerned officer(s) in accordance with law. The contention that such directions offend the mandate of the Constitution of the Islamic Republic of Pakistan, 1973, or are in derogation of Section 5 of the West Pakistan Anti-Corruption Establishment Ordinance, 1961, is misconceived. The judgment merely sets the lawful process into motion and does not encroach upon, curtail, or prejudice the jurisdiction of any statutory authority. Therefore, no constitutional or statutory infirmity can be attributed to the directions contained in paragraph No. 38 of the judgment dated 05.05.2026.

18. Furthermore, if the applicant is aggrieved by the judgment/order of this Court, he may, on legally permissible grounds, avail the remedy available before the Hon'ble Federal Constitutional Court of Pakistan. However, in the absence of any express provision of law, this Court cannot pass an order suspending its own judgment or order for a specified or indefinite period without lawful authority.

19. For the reasons recorded hereinabove, the instant application is found to be devoid of merit and is, accordingly, dismissed.

Announced
10.06.2026
(Ghafoor Zaman)

-Sd-
Judge

-Sd-
Judge

Date of hearing and announcement of
judgment 10.06.2026

Date of preparation and signing of
judgment.....10.06.2026

(D.B.)
Hon'ble Mr. Justice Muhammad Tariq Afridi
Hon'ble Mr. Justice Sabit Ullah Khan